

CHAPTER 38.

An Act to amend the law with respect to Customs
in the Isle of Man. [3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The duties of customs on wines removed or imported into the Isle of Man imposed by section one of the Isle of Man (Customs) Act, 1927, shall continue to be payable as from the first day of August, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine.

Duties on
wines.
17 & 18
Geo. 5. c. 20.

2.—(1) On and from the eleventh day of June, nineteen hundred and twenty-eight, in lieu of the customs duty theretofore payable on sweets, there shall, until the first day of August, nineteen hundred and twenty-nine, be payable on sweets removed or imported into the Isle of Man a duty of customs at the rate of one shilling and sixpence for every gallon.

Duty on
sweets.

(2) In this section the expression "sweets" means any liquor which is made in Great Britain or Northern Ireland from fruit and sugar, or from fruit or sugar mixed with any other material, and which has undergone a process of fermentation in the manufacture thereof, and includes British wines, made wines, mead, and metheglin.

3. The additional duties of customs on spirits removed or imported into the Isle of Man imposed by section three of the Isle of Man (Customs) Act, 1921, as amended by section three of the Isle of Man (Customs) Act, 1926, shall continue to be payable as from the first day of August, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine.

Duties on
spirits.
11 & 12
Geo. 5. c. 40.
16 & 17
Geo. 5. c. 27.

4. The additional duties of customs on ale or beer removed or imported into the Isle of Man imposed by section two of the Isle of Man (Customs) Act, 1925, shall continue to be payable as from the first day of August,

Duties on
ale or beer.
15 & 16
Geo. 5. c. 56.

nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine.

Duties on
hops.

5. The duties of customs on hops, and extracts, essences and other similar preparations made from hops, removed or imported into the Isle of Man imposed by section five of the Isle of Man (Customs) Act, 1925, shall continue to be payable as from the first day of August, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine.

Duties on
tobacco.

6. The duties of customs on tobacco removed or imported into the Isle of Man imposed by section six of the Isle of Man (Customs) Act, 1927, shall continue to be payable as from the first day of August, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine.

Duties on
matches.

7. The duties of customs on matches removed or imported into the Isle of Man imposed by section seven of the Isle of Man (Customs) Act, 1927, shall continue to be payable as from the first day of August, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine.

Duties on
mechanical
lighters.

8.—(1) On and from the eleventh day of June, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine, there shall be payable on any mechanical lighter removed or imported into the Isle of Man and on any component part of a mechanical lighter so removed or imported, other than a flint, a duty of customs of sixpence :

Provided that the Commissioners may, subject to such conditions (if any) as they think fit to impose, exempt from duty under this section any mechanical lighters which are shown to their satisfaction to be intended to be used as parts of miners' lamps, and the component parts of any such mechanical lighters.

(2) In this section the expression "mechanical lighter" means any mechanical or chemical contrivance which is portable and is intended for producing a spark or flame, whether by itself or when brought into contact with gas.

Duties on
cocoa.
14 & 15
Geo. 5. c. 24.

9. The duties of customs on cocoa removed or imported into the Isle of Man imposed by section four of the Isle of Man (Customs) Act, 1924, shall continue to

be payable as from the first day of August, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine.

10. The duties of customs on silk or artificial silk removed or imported into the Isle of Man imposed by section seven of the Isle of Man (Customs) Act, 1925, as amended by section eight of the Isle of Man (Customs) Act, 1926, shall continue to be payable as from the first day of August, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine. Duties on silk.

11. The duty of customs on lace removed or imported into the Isle of Man imposed by section nine of the Isle of Man (Customs) Act, 1925, as amended by section ten of the Isle of Man (Customs) Act, 1926, and section ten of the Isle of Man (Customs) Act, 1927, shall continue to be payable as from the first day of August, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine. Duty on lace.

12. The duties of customs on motor cars, including motor bicycles and motor tricycles, and their accessories and component parts, removed or imported into the Isle of Man imposed by section six of the Isle of Man (Customs) Act, 1925, as amended by section six of the Isle of Man (Customs) Act, 1926, and section eleven of the Isle of Man (Customs) Act, 1927, shall continue to be payable as from the first day of August, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine. Duties on motor cars, &c.

13. The duties of customs on—

- (a) musical instruments, including gramophones, pianolas and other similar instruments;
 - (b) accessories and component parts of musical instruments, and records and other means of reproducing music; and
 - (c) clocks and watches, and component parts of clocks and watches,
- Duties on musical instruments, clocks, watches, &c.

removed or imported into the Isle of Man imposed by section six of the Isle of Man (Customs) Act, 1925,

shall continue to be payable as from the first day of August, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine.

Duties on
cinemato-
graph films.

14.—(1) Subject to the provisions of this section the duties of customs on cinematograph films removed or imported into the Isle of Man imposed by section six of the Isle of Man (Customs) Act, 1925, as amended by section twelve of the Isle of Man (Customs) Act, 1927, shall continue to be payable as from the first day of August, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine.

(2) The duties of customs imposed as aforesaid shall cease to be payable in the case of a film which is certified by the Royal Society of London for Promoting Natural Knowledge to be solely an illustration of scientific investigation for exhibition before members of a recognised scientific body, and which is imported only for the purpose of such exhibition free of charge.

(3) If any person exhibits, otherwise than as aforesaid, any film which is exempted from duty under the last foregoing subsection, he shall be liable on conviction for the offence, prosecuted in the manner in which offences punishable on summary conviction may for the time being be prosecuted in the Isle of Man, to a fine not exceeding fifty pounds in respect of each offence.

(4) Subject to compliance with such conditions as the Commissioners may by regulations prescribe, any negative cinematograph films which are certified by the Board of Trade to satisfy the requirements of subsection (3) of section twenty-seven of the Cinematograph
17 & 18
Geo. 5. c. 29. Films Act, 1927 (which prescribes what films shall be deemed to be British films for the purposes of that Act), and parts of any films so certified shall, for the purpose of the customs duties imposed as aforesaid, be treated as if they were blank film.

(5) Subsections (2) and (3) of this section shall be deemed to have had effect as from the first day of August, nineteen hundred and twenty-eight, and subsection (4) of this section shall be deemed to have had effect as from the eleventh day of June, nineteen hundred and twenty-eight.

15. The duties of customs on cutlery, gloves and mantles for incandescent lighting removed or imported into the Isle of Man imposed by section fourteen of the Isle of Man (Customs) Act, 1926, shall continue to be payable as from the first day of August, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine.

Duties on cutlery, gloves and mantles for incandescent lighting.

16. The duty of customs on translucent or vitrified pottery removed or imported into the Isle of Man imposed by section fourteen of the Isle of Man (Customs) Act, 1927, shall continue to be payable as from the first day of August, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine.

Duty on translucent or vitrified pottery.

17.—(1) On and from the eleventh day of June, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine, there shall be payable on buttons removed or imported into the Isle of Man (not being buttons manufactured in Great Britain or Northern Ireland), a duty of customs of an amount equal to thirty-three and one-third per cent. of the value of the goods.

Duties on buttons and enamelled hollow-ware.

(2) On and from the thirteenth day of June, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine, there shall be payable on wrought enamelled hollow-ware removed or imported into the Isle of Man (not being hollow-ware manufactured in Great Britain or Northern Ireland), a duty of customs of an amount equal to twenty-five per cent. of the value of the goods.

(3) In this section the expression "buttons" means buttons made of any material, and whether finished or unfinished, of a description commonly used for the fastening or decorating of wearing apparel or household linen, not being buttons forming part of any other article, and the expression "wrought enamelled hollow-ware" means wrought enamelled hollow-ware, whether of iron or steel, of a description commonly used for domestic purposes.

(4) The provisions of subsections (2), (3) and (5) of section fourteen of the Isle of Man (Customs) Act, 1926, shall apply to the goods chargeable with duty under this section and to the duties imposed by this section as they

apply to the articles chargeable with duty under that section and to the duties imposed by that section, and the provisions of section ten of the *Isle of Man (Customs) Act, 1925* (which relates to the definition of value for the purposes of ad valorem duties), shall apply for the purposes of the assessment and collection of duties under this section as they apply for the purposes of the assessment and collection of duties under that Act.

Duty on
hydro-
carbon oils.

18.—(1) On and from the eleventh day of June, nineteen hundred and twenty-eight, until the first day of August, nineteen hundred and twenty-nine, a customs duty at the rate of fourpence per gallon shall be payable on all hydrocarbon oils removed or imported into the *Isle of Man* (not being oils manufactured or produced in Great Britain or Northern Ireland otherwise than by refining hydrocarbon oils imported into Great Britain or Northern Ireland).

(2) There shall be allowed from the duties payable under this section a rebate at the rate of fourpence per gallon on the delivery for home consumption of any goods other than light oils.

(3) If on an application made for the purposes of this subsection by the owner of a fishing boat entered in the fishing boat register it appears to the satisfaction of the Commissioners that the applicant has at any time within the period of six months preceding the date of his application, or within such longer period preceding that date as the Commissioners may in any special case allow, used any quantity of hydrocarbon oil on board the boat, he shall be entitled to obtain from the Commissioners repayment of any duty which has been paid in respect of the oil so used :

Provided that—

- (a) an application for the purposes of this subsection must be made in such manner as the Commissioners may prescribe; and
- (b) no person who has previously made an application under this subsection for repayment of duty shall be entitled to make a further application until the expiration of at least three months from the date on which the last preceding application was made.

(4) For the purposes of this section—

- (a) the expression “hydrocarbon oils” means petroleum oils, coal tar, and oils produced from coal, shale, peat or any other bituminous substance, and all liquid hydrocarbons;
- (b) the expression “light oils” means hydrocarbon oils of which not less than fifty per cent. by volume distils at a temperature not exceeding one hundred and eighty-five degrees centigrade, or of which not less than ninety-five per cent. by volume distils at a temperature not exceeding two hundred and forty degrees centigrade, or which give off an inflammable vapour at a temperature of less than 22·8 degrees centigrade when tested in manner prescribed by the Acts relating to petroleum;
- (c) the expression “fishing boat” means a boat used for the purposes of fishing by a person gaining a substantial part of his livelihood thereby.

The method of testing oils for the purpose of ascertaining whether they comply with the provisions of paragraph (b) of this subsection relating to the distillation of a certain volume thereof at a certain temperature shall be such as the Commissioners may prescribe.

19. The Commissioners may make regulations with respect to the collection of the duties continued or imposed by sections seven, eight and eighteen of this Act, and may for that purpose apply, with the necessary modifications, to any article removed or imported into the Isle of Man upon which duties are imposed by those sections any enactments applicable to duties on the like article imported into Great Britain or Northern Ireland, and any regulations made under subsection (3) of section seven of the Isle of Man (Customs) Act, 1927, shall have effect as if they had been made under this section.

20.—(1) In this Act the expression “the Commissioners” means the Commissioners of Customs and Excise. Regulations.
Interpretation and short title.

(2) This Act may be cited as the Isle of Man (Customs) Act, 1928.